TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

July 21, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**Chamu vs. Potter** **24-01422320**	Demurrer to Amended Cross-Complaint Cross-Defendant and Plaintiff Simon Fuentes Chamu ("Cross-Defendant") demurs to the first cause of action for implied indemnity, second cause of action for contribution and indemnity, third cause of action for declaratory relief, and fourth cause of action for negligence as alleged in the First Amended Cross-Complaint. Cross-Defendant also notes that he is not named in the caption of the operative Cross-Complaint. Cross-Complainants Jeffrey Potter and Dawna Potter ("Cross-Complainants") oppose the Demurrer. The Court finds that the meet and confer efforts were insufficient. Prior to bringing a demurrer, "the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be

		reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) Most importantly, "[a]s part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies." (Code Civ. Proc., § 430.41, subd. (a)(1).) Then, "[t]he party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency." (Code Civ. Proc., § 430.41, subd. (a)(1).) "The parties shall meet and confer at least 5 days before the date the responsive pleading is due." (Code Civ. Proc., § 430.41, subd. (a)(2).) "If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer." (Ibid.) Here, Cross-Defendant's counsel testifies that he sent an email on May 12, 2026 advising Cross-Complainants that Cross-Defendant "intending to file a demurrer to the first amended cross-complaint because the first amended cross complaint is defective and appears to be for ROES." This meet and confer email is deficient for several reasons. First, the meet and confer did not take place "in person, by telephone, or by video conference." Second, the email was sent on the same day that the demurrer was filed, which means that the meet and

		confer did not take place at least 5 days before the date the responsive pleading was due. Third, Cross-Complainants present evidence that the email did not "identify with legal support the basis of the deficiencies." This meet and confer was insufficient. As such, Cross-Defendant is ORDERED meet and confer pursuant to code. Cross-Defendant shall file a declaration setting forth the meet and confer efforts and remaining issues to be determined by the Court following the parties' code compliant meet and confer efforts. If Cross-Defendant does not file a declaration 9 court days before the continued hearing, the Court will consider the issues raised in the demurrer resolved and the Demurrer to the First Amended Cross-Complaint will go off calendar. The hearing on the Demurrer to the First Amended Cross-Complaint is CONTINUED TO October 13, 2026, at 10:00 AM. No further briefing, except for the Court ordered declaration discussed above. Moving party to give notice.
102	**Murillo vs. Juicecrafters Inc.** **26-01555793**	Motion to Strike Portions Of Complaint Defendant JuiceCrafters, Inc. ("Defendant") moves to strike Plaintiff's claim for punitive damages. Plaintiff Marcantonio Murillo ("Plaintiff") opposed the motion. Civil Code section 3294 states: "(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty

		of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." Importantly, corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive." (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) "An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees." (Id.) "But the law does not impute every employee's malice to the corporation." (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167.) "Instead, the punitive damage statute requires proof of malice among corporate leaders: the 'officer[s], director[s], or managing agent[s].'" (Id.) "Managing agents" are employees who "exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy," such as those "decisions that set these general principles and rules." (Id., at pp. 167-68; Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 714-15.) Here, the Court finds that the allegations in the Complaint are sufficient to support a claim for punitive damages against the corporate defendant JuiceCrafters, Inc. at this stage in the litigation. The Court finds that

		the allegations in paragraphs 17-24 state facts sufficient to constitute the requisite oppression, fraud, or malice to support a claim for punitive damages. Moreover, the allegations in paragraph 25 support a claim for punitive damages against a corporation. The Motion is DENIED. Defendant to give notice.
103	**Zavala vs. Price** **26-01541665**	1. Motion to Strike Answer 2. Case Management Conference Plaintiff Regina Zavala, proceeding in pro per, moves to strike Defendant's unverified answer to the verified form complaint. In the motion, Plaintiff also asks the Court to "enforce the court order determining defendant's sole liability in Related Case no. 30-2025-01451705-CU-PA-CJC – Riordan Zavala v. Rochelle Niegas Price." Defendant Rochelle Price did not oppose the motion. On January 20, 2026, Plaintiff filed a notice of related case, identifying Riordan Zavala v. Rochelle Niegas Price, Case No. 30 2025 01451705—CU PA CJC as a related case. The Court finds that the two cases are related. (Cal. Rules of Court, rule 3.300.) As such, this case is transferred to Department C31, which is currently presiding over the related case, Riordan Zavala v. Rochelle Niegas Price, Case No. 30 2025 01451705—CU PA CJC. The motion to strike will be heard in Department C31 on a date to be determined and noticed by the Court. Plaintiff to give notice.

104	**Avalos vs. Magnum Management Corporation** **25-01532165**	1. Motion for Leave to File Amended Complaint Plaintiff, Francisco Avalos III, moves for an order granting leave to file a First Amended Class Action Complaint. The Motion is GRANTED. Defendants, Magnum Management Corporation, Six Flag Entertainment Corporation, Knott's Berry Farm LLC, and Bobby Obezo have filed a notice of non-opposition stating that they do not oppose the instant motion for leave to file a First Amended Class Action Complaint. The moving papers sufficiently comply with the requirements of California Rules of Court, rule 3.1324(a)-(b). The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Ibid.) California courts generally exercise their discretion liberally to permit the amendment of pleadings at all stages of the proceeding in order to resolve cases on their merits. (IMO Development Corp. v. Dow Corning (1982) 135 Cal. App. 3d 451, 461.) This liberality only applies so long as there is no prejudice to the opposing party. (Higgins v. Del Faro (1981) 123 Cal. App. 3d 558, 564.) Leave to amend can be denied if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (Hirsa v.

			Sup.Ct. (Vickers) (1981) 118 Cal. App. 3d 486, 490; Melican v. Regents of Univ. of Calif. (2007) 151 Cal. App. 4th 168, 176; Fisher v. Larsen (1982) 138 Cal. App. 3d 627, 649 [finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of discretion to deny leave to amend the complaint].) "[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted]. Here, there is no showing of undue delay. Plaintiff's counsel provides that the class-wide scope of Defendants' violations could not be fully confirmed until Plaintiff had an opportunity to review Defendants' payroll records and personnel files, which were received on December 15, 2025, and that the administrative prerequisite of submitting a written notice with the California Labor and Workforce Development Agency identifying Defendants' Labor Code violations on behalf of Plaintiff and all Aggrieved Employees was completed on March 6, 2026. (Declaration of Julian Samaan, ¶¶ 5-7, 12.) Plaintiff's counsel met and conferred with Defendants' counsel regarding Plaintiff's intent to amend the Complaint to add class-wide wage and hour claims and a PAGA representative claim on March 16, 2026, Defendants refused to stipulate to the filing of the First Amended Class Action Complaint, and

		Plaintiff filed the instant motion for leave to amend on May 8, 2026. (Id., ¶¶ 8-9, 12.) Nor is there any showing of prejudice. No trial date has been set, and there is no dispute that the action is in its early stages of discovery. Given that courts liberally grant leave to amend pleadings so that a case can be resolved on the merits, and in light of the lack of undue delay and lack of prejudice, Plaintiff's motion for leave to file the proposed First Amended Class Action Complaint is GRANTED. Plaintiff to serve and file the First Amended Class Action Complaint within 10 days. Plaintiff to give notice. 2. Case Management Conference
105	**Stachowiak vs. Sandijan** **25-01494613**	Motion to Appear Pro Hac Vice **x 2** Attorney Edward J. Hafer seeks an order allowing him to appear pro hac vice for Cross-Defendants Rampbell, Inc. and Lynne Anthony-Campbell (ROA 84.) Kylie T. Hance seeks an order allowing her to appear pro hac vice for Cross-Defendants Rampbell, Inc. and Lynne Anthony-Campbell (ROA 88.) To be eligible for admission pro hac vice: • The applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; and • The applicant must not be a California resident, nor regularly engaged in "substantial business, professional, or other activities" here; and

<table><tr><td></td><td></td><td>• An active licensee of the California Bar must be associated as attorney of record in the case. [CRC 9.40(a)]

The applicant must file a verified application (often a declaration) stating:

(1) the applicant's residence and office addresses;

(2) the court or courts in which the applicant is admitted to practice and the dates of admission;

(3) that the applicant is in good standing in such courts;

(4) that the applicant is not currently suspended or disbarred in any court;

(5) the title and case number of any action in this state (presumably whether state or federal) in which the applicant has applied to appear pro hac vice during the preceding two years;

(6) the name, address and telephone number of the active licensee of the State Bar who is attorney of record. [CRC 9.40(d), (e)—filing fee must accompany application]

Copies of the application must be served by mail upon all parties who have appeared in the action, and also upon the State Bar at its San Francisco office at least 16 court days before the hearing (notice governed by CCP § 1005). A fee (currently $50) must be paid to the State Bar. [CRC 9.40(c)(1), (e) (applications to superior court)].

In this instance, neither Edward J. Hafer nor Kylie T. Hance has declared that they are “in good standing in such courts.” While they both declare, “I am not currently suspended or disbarred in any court”, they did not also state they are in good standing in Colorado (the state in which they both reside and work).</td></tr></table>

		Additionally, "local counsel" is not actually local, but works in Colorado. Local counsel is Arron B. Nesbitt (Ca State Bar No. 202948), 216 16th Street, Suite 1100, Denver, Colorado 80202, (720) 798 1620. While CRC 9.40(d) only requires the "name, address, and telephone number of the active licensee of the State Bar who is attorney of record", it is unclear if the active licensee is required to work/reside in California. What are the practical implications of having no truly local counsel? Finally, while Attorney Nesbitt declares, "I have served a copy of this declaration and the application for admission on the San Francisco offices of the State Bar of California with the necessary fee" (Nesbitt Decl.¶7), the State Bar of California is not listed on the proof of service, and Attorney Nesbitt provides no proof of payment. Applications are otherwise compliant. To avoid a continuance or denial of these motions, Attorneys are ordered to appear at the hearing and be prepared to discuss the above. If attorneys do not appear, the Court will continue this motion without prejudice. ----- Parties appeared to state that they are in good standing in the State of Colorado. Court grants – MP to give notice.
106	**Nguyen vs. Yadidi** **26-01545507**	1. Motion to Seal 2. Motion to Appoint Receiver 3. Case Management Conference

		Plaintiff Minh Nguyen, D.O., individually and derivatively on behalf of Agile Occupational Medicine, PC ("Plaintiff" or "Dr. Nguyen") seeks an order appointing a limited receivership over Agile Occupational Medicine, PC ("Agile PC") and issuing a preliminary injunction in aid of the receivership. The motion is DENIED. Code Civ. Proc., § 564 sets forth when a receiver may be appointed; Plaintiff relies on subsections (b)(1) and (9), which state that "A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action . . . between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, . . . where it is shown that the property or fund is in danger of being lost, removed, or materially injured. (9) In all other cases where necessary to preserve the property or rights of any party. Cal. Civ. Proc. Code § 564(b)(1), (9). A receivership is an equitable remedy, and thus the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. (Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 Cal.App.2d 869, 872.) The appointment or refusal to appoint a receiver rests entirely within the discretion of the trial court. (Elson v. Nyhan (1941) 45 Cal.App.2d 1, 4.) Because the appointment of a receiver transfers property…out of the hands of its owners and into the hands of a receiver [citation], the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly and with caution." (Koenig v. Centralia Limited Investors (2025) 112 Cal.App.5th 1174, 1192 [internal quotations omitted]; see also Turner v.

		Superior Court (1977) 72 Cal.App.3d 804, 809 (citing Hoover v. Galbraith (1972) 7 Cal.3d 519, 528).) Here, the Court finds that the evidence presented by Plaintiff does not support the drastic relief sought by way of this motion. Plaintiff contends that Defendants are operating Agile PC unlawfully, and that a receiver is necessary to maintain Agile PC's status quo while this action is pending. By way of this action, Dr. Nguyen seeks, amongst other things, to restore his ownership shares and position as sole director of Agile PC. (FAC, Prayer, ¶ 3.) A review of the evidence presented by both sides shows that each side contends that the other engaged in practices that were not in the best interest of Agile PC and/or were unlawful. (See Nguyen Decl.; Yadidi Decl.) On the whole, the Court is not persuaded that Agile PC is in danger of being lost or materially injured in the absence of a receiver. For example, one of Dr. Nguyen's major grievances is that he and Dr. Yadidi were allegedly unlawfully told to "report" to Agile MSO's CEO, Peter Murray, who is not a physician. (Nguyen Decl. ¶ 19.) However, the only evidence Dr. Nguyen provides of this alleged requirement is a single sentence in an email from Brandon Gold, Vice President of Operations of Defendant Angeles Equity Partners, who stated " . . . Dr. Yadidi is the CMO of legacy Akeso clinics (south) and you are CMO of the legacy Agile clinics (north). Both roles report into Peter [Murray] directly." (Nguyen Decl., Exh. 11.) In opposition, Defendants provide the declaration of Brandon Gold, who explains that Dr. Nguyen's purported interpretation of this sentence is incorrect. Mr. Gold credibly explains that the statement in his email "was incomplete and did not explain that [he] meant in regard to both Plaintiff's and Dr. Yadidi's respective roles as Clinical Liaisons for Agile MSO, which is a completely administrative position, and their

		business management services in support thereof." (Gold Decl. ¶ 12.) Dr. Yadidi corroborates Mr. Gold's statement with his own declaration, in which he states: "In my role as CEO and CMO of Agile PC, I have never had a reporting relationship to Agile MSO or to Peter Murray, CEO of Agile MSO, nor has any suggestion ever been made." (Yadidi Decl ¶ 15.) Murray also provides a declaration indicating that Dr. Nguyen "never reported to Agile MSO or to me, CEO of Agile MSO in his role as Chief Medical Officer of Agile PC. However, in his role as an employee of Agile MSO as a Clinical Liaison, he did report to me regarding the business management services he was tasked with performing pursuant to his Clinical Liaison Employment Agreement." (Murray Decl. ¶ 15.) The Court finds these explanations credible, as the phrase "report into" suggests the delivery of information (i.e., that Murray would be the point of contact at Agile MSO), as opposed to signifying a supervisor/subordinate relationship. (Nguyen Decl., Exh. 11 (emphasis added).) Further, Plaintiff offers no evidence, other than his own declaration, to support his interpretation. Plaintiff claims he "continually objected" to the alleged requirement to report to Murray but provides no evidence of any written objections—or any response from Defendants asserting that Dr. Nguyen was to be overseen by Murray. (See Nguyen Decl. ¶¶ 20-23.) As another example, Dr. Nguyen asserts that Agile MSO's Chief People Officers, Phuong Goodwin, as well as Mr. Murray and Dr. Yadidi unilaterally decided to terminate a physician in contradiction to the medical credentialing committee's decision. (Nguyen Decl. ¶ 34.) Dr. Nguyen was the chair of the credentialing committee. (Ibid.) Dr. Nguyen contends that the committee decided to keep the physician because he was not a threat to patient safety, and he worked in an underserved community. (Ibid.) Plaintiff asserts that

		"Ms. Goodwin, Mr. Murray, and Dr. Yadidi's decision to immediately terminate the physician improperly usurped Agile PC's ultimate authority (and my professional judgment as supervisory physician) over peer review of providers and employment decisions relating to their credentials, proficiency, and performance." (Id.) Plaintiff cites to Exhibit 16, which is an email from Mr. Murray to Dr. Nguyen, Dr. Yadidi, Ms. Goodwin, and others regarding an executive team staff meeting that took place the previous day. (Nguyen Decl., Exh. 16.) Although the email is from Mr. Murray, it states that "Dr. Yadidi concludes, and we agree, that there is no ability for agile to resolve issues with Dr. [redacted] and he must be terminated immediately as he has engaged in unethical professional conduct resulting in him losing his credentialing and being banned from seeing patients by several payers . . . Dr. [redacted]'s prior sexual relationship with a patient constitutes gross negligence, a violation of the doctor patient relationship, medical ethics, and is directly representative of a lack of quality care." (Nguyen Decl., Exh. 16.) Thus, the evidence appears to show that Dr. Yadidi (a physician) made the decision that this physician should be terminated, due to a variety of factors. Further, Dr. Yadidi testifies in his declaration that he made the decision to terminate the provider, and that he did not agree with Dr. Nguyen's solution "to allow the provider to fraudulently bill under Dr. Nguyen's information." (Yadidi Decl. ¶ 52.) As an additional example, Dr. Nguyen contends that Dr. Yadidi implemented a directive that all employees complete a one-day steroid injection training and that providers must perform steroid injections rather than re Decl. ¶ 36.) Dr. Nguyen contends that "the idea that a one-day training session would satisfy best practices or meet the standard of care for patients is preposterous. I did not approve of this directive, and in my

		professional judgment, it is contrary to good medical practice." (Ibid.) Dr. Nguyen has not provided any independent expert testimony on this issue, and thus the Court has no way of evaluating whether such a practice is truly unreasonable. Overall, it is not at all clear that Agile PC is in danger of material harm from Defendants, such that the drastic remedy of appointing a receiver would be warranted. Accordingly, the motion is denied. <u>Requests for Judicial Notice</u> Plaintiff's requests for judicial notice are GRANTED. <u>Objections</u> Defendants' Objection Nos. 1-73 to the Nguyen Declaration are OVERRULED. Plaintiff's objection Nos. 1-2 to the Gold Declaration are SUSTAINED for lack of foundation. Objection Nos. 3-9 to the Gold Declaration are OVERRULED. Plaintiff's objection Nos. 1-2, 4, 6, and 7 (as to the first two sentences only) to the Murray Declaration are OVERRULED. Objection No. 3 is SUSTAINED for lack of foundation, No. 5 is SUSTAINED for lack for improper lay opinion, improper legal conclusion, and relevance, No. 7 as to the attempted authentication of Exhibit B is SUSTAINED for lack of foundation. Plaintiff's objection Nos. 1-10, 12-41 to the Yadidi Declaration are OVERRULED. Objection No. 11 is SUSTAINED for lack of foundation. The Court declines to rule on the remainder of the objections as immaterial to the disposition of this motion.

		Plaintiff to give notice.
107	**Lorenzini vs. Revolashion, LLC** **26-01547153**	Motion for Sanctions Defendants Ilona Alidzaeva and Alexandre Lamothe ("Defendants") move for an order granting monetary sanctions against plaintiff Annemarie Lorenzini ("Plaintiff") and dismissing the first through seventeenth causes of action pursuant to Code of Civil Procedure section 128.7. Defendants seek judicial notice of a California Secretary of State Certificate of Cancellation/Withdrawal, Texas Workforce Commission records pertaining to Plaintiff's claim for unemployment benefits, and the TWC's Issue Decision Log. The uncontested request for judicial notice is GRANTED but the Court does not take judicial notice of the truth of the matters asserted in the documents. "While [courts] may take judicial notice of court records and official acts of state agencies [citation], the truth of matters asserted in such documents is not subject to judicial notice." (Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482.) An attorney who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit; and is subject to sanctions for violation of this certification. (Code Civ. Proc., § 128.7; Murphy v. Yale Materials Handling Corp. (1997) 54 Cal.App.4th 619, 623.) Upon finding that subdivision (b) has been violated, the Court may impose "an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation." (Code Civ. Proc., § 128.7(c).) Sanctions must "be limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated." (Id. § 128.7(d).)

		Defendant Alidzaeva avers that throughout Plaintiff's employment, Plaintiff resided in Texas and Missouri, not California. (Declaration of Ilona Alidzaeva ¶ 2.) Plaintiff never traveled to California to perform any work for Revolashion. (Id. ¶ 4.) Plaintiff does not dispute that she did not live in California during her employment. Further, Revolashion was originally organized as a Texas limited liability company and subsequently became a Florida limited liability company with a principal place of business in Florida. (Id. ¶ 3.) While Revolashion previously had registered to do business in California, it withdrew its registration on February 14, 2024, well before any of the alleged adverse conduct against Plaintiff took place. In Ward v. United Airlines, Inc. (2020) 9 Cal.5th 732, the California Supreme Court considered whether pilots and flight attendants who resided in California but mostly worked outside of the state were entitled to receive wage statements that meet the requirements of California law. The Court concluded "that whether plaintiffs are entitled to California-compliant wage statements depends on whether their principal place of work is in California." (Id. at p. 740.) In its discussion, the Court cites to the long-standing presumption against extraterritoriality which provides that "state law is intended to apply only within state borders." (Id. at p. 749.) While there are some exceptions, "courts ordinarily will not give extraterritorial effect to legislative enactments absent an affirmative indication that such was the Legislature's intent." (Ibid.) In its discussion, the Court noted that "when it comes to the regulation of interstate employment, it is not sufficient to ask whether the relevant law was intended to operate extraterritorially or instead only intraterritorially, because many employment relationships and transactions will have elements of both. The better question is what kinds of California connections will suffice to trigger the relevant provisions of California law." (Id. at p. 752.) Further,

		"each law must be considered on its own terms." (Ibid.) The Court held that for purposes of Labor Code section 226, "workers are covered if they perform the majority of their work in California; but if they do not perform the majority of their work in any one state, they will be covered if they are based for work purposes in California." (Id. at pp. 755-756.) In Campbell v. Arco Marine, Inc. (1996) 42 Cal.App.4th 1850, the Court of Appeal stated that applying the FEHA in an employment action where the relationship with California is slight "would raise serious constitutional concerns[] [because] '[t]he Commerce Clause . . . precludes the application of a state statute to commerce that takes place wholly outside of the State's borders, whether or not the commerce has effects within the State.' " (Id. at p. 1858.) The Court further noted: "In addition, both the due process clause and full faith and credit clause are implicated when a state seeks to impose its laws where there are no significant contacts or aggregation of contacts creating state interests." (Ibid.) The Court held that, based on the Legislature's apparent intent, the FEHA "should not be construed to apply to nonresidents employed outside the state when the tortious conduct did not occur in California." (Id. at p. 1860.) Here, there are no California connections to this action or to the alleged misconduct sufficient to trigger the application of California labor and employment law. Further, the presumption against extraterritoriality applies to Plaintiff's UCL cause of action. (Sullivan v. Oracle Corp. (2011) 51 Cal.4th 1191, 1207 ["Neither the language of the UCL nor its legislative history provides any basis for concluding the Legislature intended the UCL to operate extraterritorially. Accordingly, the presumption against extraterritoriality applies to the UCL in full force."].) Thus, the Court finds that the first through fifth and eleventh through

		seventeenth causes of action have no basis in existing law. Defendants argue that the sixth cause of action for constructive discharge fails because Plaintiff's sworn statement to the TWC characterized her separation as caused by unannounced pay cuts and a shift in her duties, none of which describes a constructive discharge based on FEHA-protected status, and the TWC concluded that Plaintiff had not established good cause for her quitting and that her hours had been reduced for personal reasons. Plaintiff's TWC submission states that her pay was cut without notice two times to the point that it was unsustainable for her to continue working and afford childcare. Under Texas law, "[c]onstructive discharge is 'an employee's reasonable decision to resign because of unendurable working conditions.'" (Drew v. City of Houston (Tex.Ct.App. 2023) 679 S.W.3d 779, 786.) "The key inquiry for constructive discharge does not focus on whether a particular employee felt compelled to resign; instead, it focuses on whether a reasonable employee would have felt compelled to do so." (Ibid.) Here, Defendants have not shown that a reasonable employee would not have felt compelled to resign as a result of the alleged pay cuts. Further, Defendants have not shown that the TWC's findings are binding in this action. Thus, the Court finds that Defendants' arguments that the constructive discharge cause of action fails lack merit. Defendants argue that the tenth cause of action for negligent hiring, supervision, and retention fails because Plaintiff admitted in her TWC that she was the only W-2 employee of Revolashion during her tenure. However, Plaintiff alleges that although she was the sole United States-based employee, she managed a team of three to four employees located elsewhere. Defendants have not shown that there were other possibly non-W-2 employees of Revolashion during

		Plaintiff's tenure. Thus, their arguments regarding the negligent hiring cause of action also fail. Defendants do not challenge the causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, and promissory estoppel. Based on the above, the Court concludes that the causes of action pursuant to California statutes were not warranted by existing law and were filed without any evidentiary support. Thus, Plaintiff's assertion of those causes of action was in violation of section 128.7(b)(2) and (b)(3). Moreover, Plaintiff failed to withdraw those unwarranted causes of action despite Defendants' compliance with the safe harbor period. Therefore, Defendants' Motion for Sanctions striking the first through fifth and eleventh through seventeenth causes of action are GRANTED. The Court "may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion" if warranted. (Code Civ. Proc., § 128.7(c)(1).) Here, Plaintiff failed to withdraw the unmeritorious causes of action after being given the opportunity to do so during the safe harbor period. Further, Plaintiff has not presented any persuasive argument regarding the viability of her statutory claims for work that was performed outside of this state by an employer that is not based in this state or doing business in this state. Monetary sanctions for Defendants' reasonable expenses and attorneys' fees incurred in bringing this Motion are warranted to deter future frivolous filings. Defendants seek $12,060 in monetary sanctions. The Court finds the amount to be significantly inflated and instead awards Defendants $4,000 in monetary sanctions against Plaintiff's counsel only. (Code Civ. Proc., § 128.7(d)(1).) Moving party to give notice.

108	**Mejia Villa vs. Castaneda** **23-01314626**	Motion for Sanctions Pursuant to RP, the “Motion to Dismiss Pursuant to Code of Civil Procedure Section 583.210 must be heard prior to any ruling on the instant Motion because Code of Civil Procedure Section 583.250 prohibits any further proceedings or prosecution of this action, as service of process was never effectuated on numerous named defendants, who are necessary parties, and which require the dismissal of this entire action.” Since that motion is set for 8/11/2026, this motion is continued to 8/11/26. Defendant/Responding Party to give notice.
109	**Dorado vs. General Motors LLC** **24-01406222**	Motion for Attorney Fees Plaintiff Gilberto Dorado seeks an Order awarding his attorneys’ fees in the amount of (1) $39,075.25, and (2) an additional $3,487.50 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply brief and supplemental declaration, and prepare for and attend the hearing on this Motion. In total Plaintiff requests the Court order Defendant to pay attorney fees in the amount of $42,562.75. A prevailing buyer in an action under the Song-Beverly Act shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794, subd. (d).) The plain wording of section 1794, subdivision (d) requires the trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 506.)

Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended, and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (Hanna, supra, 36 Cal.App.5th at p. 507)

Notably, on a motion for attorney’s fees against Hyundai out of Los Angeles, the trial Court judge was affirmed after finding the hourly rates for each of the attorneys were not reasonable. [It reduced Altman's rate from $650 to $500 per hour, and Mikhov's rate from $500 to $400 per hour. The court fixed each of the associate's rates at $300 per hour, thus reducing one associate's rate from $350 to $300 per hour, the second from $375 to $300 per hour, and the third from $450 to $300 per hour. The court granted the full amount of fees billed by the paralegal from the Altman Law Group. The result was a total lodestar calculation of $73,864, approximately 42.2 percent less than the requested lodestar award of $127,792.50.]
In affirming, the Court of Appeal indicated in Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 32 as modified (Oct. 11, 2019)

In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East, supra, 6 Cal.App.5th at p. 437, 212 Cal.Rptr.3d 304; see Mountjoy, supra, 245 Cal.App.4th at p. 272, 199 Cal.Rptr.3d 495 [“ ‘ “a reasonable hourly rate is the product of a multiplicity of factors .... [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case” ’ ”].)

		[Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41, as modified (Oct. 11, 2019)] Also, in Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, the Court of Appeal affirmed the trial Court's reduction of the attorney's rate to $350 an hour where there were multiple timekeepers at differing rates. This case appears to give this Court authority to reduce the fees to a reasonable hourly rate. <u>Relevant History</u> On or about February 27, 2021, Plaintiff purchased the 2021 Chevrolet Silverado manufactured by Defendant. (Complaint¶6.) On June 14, 2024, Plaintiff filed the Complaint herein for: (1) VIOLATION OF SUBDIVISION (d) OF CIVIL CODE SECTION 1793.2 (2) VIOLATION OF SUBDIVISION (b) OF CIVIL CODE SECTION 1793.2 (3) VIOLATION OF SUBDIVISION (a)(3) OF CIVIL CODE SECTION 1793.2 (4) BREACH OF EXPRESS WRITTEN WARRANTY CIVIL CODE SECTION 1791.2 SUBDIVISION (a); SECTION 1794 (5) BREACH OF THE IMPLIED WARRANTY OF MERCHANTABILITY CIVIL CODE SECTION 1791.1; SECTION 1794 On July 19, 2024, Defendant GENERAL MOTORS LLC filed its Answer to the Complaint. (ROA 11) On November 19, 2024, the trial was set for November 24, 2025. (ROA 23.) On April 8, 2025, Plaintiff filed a MOTION AND MOTION TO COMPEL FURTHER RESPONSES AND DOCUMENTS TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET NO. ONE. (ROA 30) On July 15, 2025, that Motion was denied in part and granted in part. (ROA 45) On October 8, 2025, Plaintiff filed a PLAINTIFF'S NOTICE OF MOTION AND MOTION TO COMPEL COMPLIANCE WITH THE COURT'S JULY 15, 2025, DISCOVERY ORDER (ROA 55) On October 17, 2025, Plaintiff filed a MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST QUALIFIED (ROA 62) On October 22, 2025, per ex parte order, the jury trial was continued to 4/20/2026. (ROA 76)

On October 21, 2025, Defendant served a 998. (Decl. of Gruszecki¶13.)
On November 24, 2025, the case settled. (Decl. of Jiang¶26, Ex. 1.)
On December 9, 2025, Plaintiff withdrew the pending discovery motions. (ROAS 85, 86)
Two months after settling, on January 29, 2026, the Notice of Settlement was filed. (ROA 96)
On February 13, 2026, Defendant filed a Motion to Tax Costs, which was denied on May 5, 2026.
Five months after the case settled, on April 24, 2024, this Motion was filed, which is on calendar for July 21, 2026. (ROA 117)

In sum, Plaintiff requests $42,562.75 in fees for a case which involved a templated complaint, form discovery, standard cut and paste meet and confer letters, one discovery motion which was ruled upon (with mixed results), two discovery motions which were withdrawn, a Motion to Tax Costs, and this motion. Notably, no motions were filed to attack the pleadings, no depositions took place, and no vehicle inspection took place. And indeed, this motion is substantially similar to fees motions in other cases and is rather recycled. (Decl. of Gruszecki ¶15) That is, there was absolutely nothing complex about this garden variety lemon law case. Rather, the discovery propounded, motions filed (and never heard), and result obtained, all appear very characteristic of the lemon law litigation this Court has encountered.

<u>Lodestar</u>
Civil Code section 1794, subdivision (d) requires the attorney fees to be based on "actual time expended" and to have been "reasonably incurred."

In Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, "the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees" because "the lodestar adjustment method is based on actual, reasonable attorney time expended as the objective starting point of the analysis [citation], it is compatible with this statutory provision." The court reasoned that the lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d) because "the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a

		contrary intent, and no such contrary intent is apparent." (Id. at 821; Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 997.) The lodestar adjustment method requires the trial court first to determine a lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. (Robertson, 144 Cal.App.4th at 819, citing Serrano v. Priest (1977) 20 Cal.3d 25, 48–49.) For Song–Beverly Consumer Warranty Act claims, "[a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount."'" (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104; Doppes, 174 Cal.App.4th at 998.) <u>Hourly Rate</u> "The reasonable hourly rate is that prevailing in the community for similar work…The relevant 'community' is that where the court is located. (citations omitted). [Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71–72.] Plaintiff's prosecution team consisted of three attorneys and one paralegal: 1. Nancy Zhang, former Senior Partner - $515-540.00 (admitted 2013) 2. Vanessa J. Oliva, Partner - $530.00 (admitted 2016) 3. Corinna Jiang, Associate - $430-465.00 (admitted 2019) 4. Paralegal David Gomez $210-215 per hour. (employed since 2021) Given the lack of complexity in this case, the Court deems these rates generally too high. Furthermore, most of the evidence in support of the rates is from outside Orange County. (Decl. of Jiang¶¶35-38) The Court will allow the following: 1. Nancy Zhang: $500 an hour 2. Vanessa J. Oliva: $500 an hour 3. Corinna Jiang: $430-465 an hour 4. Paralegal David Gomez: $210-$215 an hour <u>Number of Hours</u> Plaintiff's attorneys spent 96.25 hours on this case. (Decl. of Jiang¶41), and anticipate 7.5 more hours for reviewing opp, drafting reply and attending hearing.

		Defendant's primary objection is the work performed by Plaintiff's attorneys was templated; and thus inflated. (See Opp pages 5-10) The Court agrees with the following: · Templated Discovery Responses (reduction 5.0 hours) · Templated Discovery Requests (reduction 5.5 hours) · Templated Meet and Confer (reduction 1.6 hours0 · Templated Motion to Compel Compliance (reduction 1.9 hours) · Motion to Compel Deposition (never heard) and Ex Parte (reduction 4.7 hours) · Second Templated Meet and Confer (reduction 3.6 hours) · Template Fee Motion (reduction 1.2 hours Plaintiff is ordered to provide a proposed Order which takes the above reductions in rates and time into consideration and makes the calculations accordingly. Defendant has 5 days to submit any objection thereto.
110	**Kerber vs. FCA US LLC** **25-01471116**	Motion for Attorney Fees Plaintiff Danielle Kerber ("Plaintiff") moves for an order granting Plaintiff attorney fees against defendant FCA US LLC ("Defendant") in the amount of $19,772.50 plus $972.01 in costs. To determine the appropriate fee award under Civil Code section 1794, the Court applies the loadstar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) Defendant does not challenge the requested costs. As to the lodestar for attorney's fees, Defendant argues that the number of hours expended by Plaintiff's counsel on certain tasks is excessive. The Court agrees that certain entries reflect an excessive number of hours spent for the related tasks and that the hours should accordingly be reduced as follows:

		· 1.3 hours by Mr. Urner on 3/27/25 for reviewing file and documents and analyzing legal claims in preparation for drafting the complaint is excessive and unreasonable in this straightforward SBA action and should be reduced to 0.5 hours (a total reduction of $420.00); · 2.3 hours by Mr. Acosta on 4/5/25 for researching recalls and technical service bulletins is excessive and unreasonable and should be reduced to 1.0 hours (a total reduction of $585.00); and · 2.2 hours by Mr. Acosta on 6/21/25 for reviewing Defendant's initial disclosure document production is excessive and unreasonable and should be reduced to 1.5 hours (a total reduction of $315.00). The above items equal a total of $1,320.00 in reductions from the requested lodestar. Based on the Court's experience and knowledge of the prevailing rates in the Orange County area for similar services, the Court finds the remaining number of hours and counsel's hourly rates to be reasonable. In light of the above, the Motion for Attorney Fees is GRANTED in the total amount of $18,452.50 in fees and $972.01 in costs. Plaintiff to give notice
111	**Bian vs. Latreill** **24-01390510**	Motion for Summary Judgment and/or Adjudication Defendant Rene Francis ("Ray") LaTreill ("LaTreill") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Wenqiang ("Wayne") Bian's ("Bian") First Amended Complaint ("FAC"). For the reasons set forth below, the motion is DENIED.

		A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) The FAC pleads causes of action for (1) equitable indemnity; (2) implied contractual indemnity; and (3) breach of fiduciary duty against LaTreill. LaTreill contends that all three causes of action are barred by issue preclusion. In May 2019, Tony Khodadad and Cashera Plaza, LLC ("Cashera") (collectively, the "Khodadad Plaintiffs") sued Bian, Michelle Liao, LaTreill, and others in Kings County for fraud, wrongful foreclosure, and other claims (the "Khodadad Action"). (UF 1.) A bench trial was first held on Cashera's two equitable claims to set aside sale and cancel instruments. (UF 2.) The court issued a statement of decision following the first phase of trial. (UF 3.) The court found the Khodadad action arose from a loan transaction with Cashera Plaza LLC as the borrower and with Bian and Liao, through the Bian Liao Living Trust ("BLLT"), as the lender. (UF 4.) Per the Statement of Decision, the Khodadad plaintiffs believed they were obtaining a construction loan to develop real property for the construction of a car wash and auto repair shop (the "Hanford Property"). (UF 5.) Undisclosed to them by Bian or the other defendants was that the loan proceeds would be used for a gold

		venture. (UF 6.) The court found that Bian and other defendants knew the loan proceeds would not be advanced for construction of the project, but rather for a gold venture in which Bian expected to be a partner. (UF 7.) Corporate Asset Science LLC ("CAS") was designated as the fund control agent, and it disbursed only $140,000 of the $1,130,000.00 in loan proceeds to Cashera. (UF 9.) The other loan proceeds were wired to Ghana, consistent with the gold venture plan and contrary to the Khodadad plaintiffs' understanding that the funds would be disbursed only for construction on the Hanford property. (UF 10.) When the Khodadad plaintiffs failed to repay the loan, Bian and Liao, through their trust, foreclosed. (UF 11.) The court found that "Defendants," which included Bian and LaTreill, knew Cashera received just $140,000 of the $1.13 million in loan funds and knew that CAS's failure to disburse the funds to the plaintiffs had impeded their construction project and caused financial harm. The court further found the "Defendants," knowing all this, nevertheless demanded repayment of the entire loan plus interest, recorded a Notice of Default when payment was not made, and proceeded with foreclosure as though the lender had fully performed. (UF 13 and Deft's Response to UF 13.) The court found that Defendants engaged in fraud when entering the underlying loan. (RJN, Exh. C at 25:17-18.) Although the court was only deciding the equitable claims to set aside the sale and cancel instruments in this first phase of the trial, the Court noted that its findings were binding on the upcoming jury trial on Plaintiffs' legal claims, and that numerous elements of those claims were established by its findings. (RJN, Exh. C at 29:13-23.) The Court concluded that "[f]or the fraud claim, the elements of a misrepresentation, scienter, intent to induce reliance, justifiable reliance, and resulting damage are

established, as is Plaintiffs' entitlement to punitive damages based on the Court's finding that Defendants acted with malice in originating the loan. The jury need only determine the amount of compensatory and punitive damages." (RJN, Exh. C at 30:2-5.)

LaTreill contends that, because the Khodadad court found that Bian was an intentional tortfeasor, he is barred from seeking equitable indemnity, implied contractual indemnity, or damages for breach of fiduciary duty. As authority for this proposition, LaTreill relies primarily on a footnote found in Fisher v. Fisher (2026) 118 Cal. App. 5th 899, which cites to B.B. v. County of Los Angeles (2020) 10 Cal. 5th 1. (Fisher v. Fisher (2026) 118 Cal. App. 5th 899, fn. 5 (citing B.B. v. County of Los Angeles (2020) 10 Cal. 5th 1, 24).) However, the issue addressed in B.B. was whether an intentional tortfeasor was entitled to a reduction or apportionment of damages pursuant to Civil Code §1431.2 (adopted through "Proposition 51"). In the Fisher case, the court merely cited B.B. in a footnote, in dicta, to explain why the trial court did not ask the jury to apportion fault for damages for intentional infliction of emotional distress. Thus, while Fisher and B.B. state in passing that comparative fault does not apply to intentional tortfeasors, the issue was not squarely before either court.

In contrast to the above, in Baird v. Jones, the appellate court squarely confronted the issue of whether comparative equitable indemnity applies to concurrent intentional tortfeasors—a question that the Supreme Court has yet to consider. (Baird v. Jones (1993) 21 Cal.App.4th 684.) After analyzing various Supreme Court decisions, the Baird court ultimately held that "[c]onsistent with the Supreme Court's view, we conclude comparative fault principles should be applied to intentional torts, at least to the extent that comparative equitable indemnification can be applied between concurrent intentional tortfeasors." (Id. at 690.) The Baird court reasoned "[i]f it is equitable and

		just to allocate loss between concurrent negligent tortfeasors, a negligent tortfeasor and an intentional tortfeasor, or a negligent tortfeasor and a strictly liable defendant, then there is little logic in prohibiting an intentional tortfeasor from forcing another intentional tortfeasor to bear his or her share of liability. (Id. at 692.) More recently, the Ninth Circuit, in applying California law, noted that "there is no categorical bar forbidding one intentional tortfeasor from seeking equitable indemnity against another; it is a case-specific inquiry." (U.S. Securities & Exchange Commission v. Peterson (9th Cir. 2025) 129 F.4th 599, 611, cert. denied sub nom. Peterson v. Freitag (2026) 146 S.Ct. 1462, and cert. denied sub nom. Ovation Fund Management II, LLC v. Nos-saman LLP (2026) 146 S.Ct. 1499 (citing Baird v. Jones, 21 Cal.App.4th 684 (1993); Henry v. Lehman Com. Paper (In re First All. Mortg. Co.), 471 F.3d 977, 1005 (9th Cir. 2006) (recognizing that California law allows "for comparative equitable indemnification among joint intentional tortfeasors").) Thus, contrary to LaTreill's assertions, an intentional tortfeasor is not categorically barred from seeking indemnification from another intentional tortfeasor. Citing Code of Civil Procedure section 875(d), LaTreill next contends that contribution is barred for intentional tortfeasors by statute. However, both parties acknowledge that Section 875(d) is not applicable here, as subsection (a) states, "Where a money judgment has been rendered jointly against two or more defendants in a tort action, there shall be a right of contribution among them as hereinafter provided." (Code Civ. Proc. § 875(a).) Subsection (d) then provides the exception that "There shall be no right of contribution in favor of any tortfeasor who has intentionally injured the injured person." (Code Civ. Proc. § 875(a).) Section 875 does not apply to this case because there was no judgment

		rendered against LaTreill, and thus there is no jointly rendered money judgment. (AUF 25.) LaTreill finally contends that, to the extent the second cause of action for implied contractual indemnity and the third cause of action for breach of fiduciary duty are predicated on an oral agreement, they are both barred because the underlying oral agreement was unlawful and therefore unenforceable. The FAC frames the agreement as follows: In or around late 2015, Bian and Latreill entered into a verbal agreement under which Latreill, acting as a broker for Bian, arranged a loan from Bian to Cashera to provide financing for an investment in a program to mint commemorative gold coins secured by a lien against the Cashera Property, arranged a fund control mechanism for the loan, and handled the foreclosure process when Cashera failed to pay off and satisfy the loan by the maturity date and no extension agreement was procured. In consideration for Latreill's services, Latreill was to receive a share of the profits derived from the sale of the mint commemorative gold coins (on information and belief, a one-third share), along with cash compensation. Latreill had a duty to exercise reasonable care and diligence in providing such services to Bian under the parties' verbal agreement and understanding. (FAC ¶ 32.) Code of Civil Procedure section 1668 provides that "[a]ll contracts which have for their object, directly or indirectly, to exempt any one from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law." In Homami v. Iranzadi, cited by LaTreill, the court explained that "even though a written contract is legal on its face, evidence may be introduced to establish its

		illegal character . . . And if the substance of the transaction is illegal, it matters not when or how the illegality is raised in the course of the lawsuit. Whether the evidence comes from one side or the other, the disclosure is fatal to the case . . . As the cases have repeatedly pointed out, 'the test ... is whether the plaintiff can establish his case otherwise than through the medium of an illegal transaction to which he himself is a party.'" (Homami v. Iranzadi (1989) 211 Cal.App.3d 1104, 1112, modified (June 27, 1989).) Here, the agreement on its face does not appear to have an illegal object. LaTreill contends, however, that the Khodadad court's findings that the loan was ultimately fraudulently brokered are tantamount to a finding that the alleged oral agreement did not have a lawful object. While the Court found Bian "to be a highly educated, sophisticated individual who knew and understood more than he admitted," the Court made no specific findings that Bian was aware that the Khodadad plaintiffs believed they were obtaining a construction loan and not investing in a gold venture. (UF 33, 25.) Rather, throughout the statement of decision, it appears only that Bian was aware the loan was for a gold venture—but there are no findings that Bian was actually aware that the Khodadad plaintiffs believed the transaction was a construction loan. The Khodadad court's finding that Bian committed fraud in connection with the loan instead relies heavily on its finding that other parties, such as LaTreill, Abernethy, CAS, and Banuelos were acting as agents for Bian for purposes of the loan. (RJN Exh. C at 13:25-14:12; 17:23-18:2.) The Khodadad court expressly stated that part of its findings as to Bian were based on a theory of vicarious liability and imputed knowledge. (RJN Exh. C at 19:17-21:2.) Accordingly, at this juncture, LaTreill has not met his burden of demonstrating that the oral agreement alleged in the FAC was for a purpose that violates Section 1668. The agreement's purpose is not violative

		on its face, and the Khodadad court's statement of decision does not include any findings that indicate that Bian's object in entering into the agreement was for a purpose prohibited by section 1668. LaTreill's requests for judicial notice are GRANTED pursuant to Evid. Code §452(d). The Court declines to rule on LaTreill's objections as immaterial to the disposition of this motion. (Code Civ. Proc. § 437c(q)). Moving party to give notice.
112	**O'Mary vs. City of Tustin** **24-01442068**	Motion for Summary Judgment and/or Adjudication Defendant, City of Tustin ("Tustin"), moves for an order granting summary judgment in favor of the Tustin as to Plaintiff, Elisa Jill O'Mary's Complaint. The Motion for Summary Judgment is DENIED. Tustin contends that the uplift in the sidewalk in front of the property located at 16661 McFadden Avenue ("Subject Sidewalk") which was raised at a range between 0.81 inches to 1.15 inches is a trivial defect as a matter of law such that Plaintiff cannot show that Tustin had a duty to remedy the uplift in the Subject Sidewalk. Tustin also contends that there was nothing in the Subject Sidewalk that aggravated the uplift or otherwise made it unreasonably dangerous to a person using due care, and that Plaintiff has not identified or pleaded any aggravating conditions of the Subject Sidewalk, and may not attempt to create issues that were not alleged in the Complaint. Government Code section 835 ". . . 'expressly authorizes two different forms of dangerous conditions liability: an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or, alternatively, failure "to protect against" dangerous conditions of which the entity had notice (id., subd.

		(b)).’ [Citation.]” (Kabat v. Department of Transportation (2024) 107 Cal. App. 5th 651, 660.) “The phrase ‘protect against’ includes ‘warning of a dangerous condition.’ § 830, subd. (b).)” (Ibid.) “To establish liability under section 835, a plaintiff must show: ‘(1) “that the property was in a dangerous condition at the time of the injury”; (2) “that the injury was proximately caused by the dangerous condition”; (3) “that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred”; and (4) either (a) that a public employee negligently or wrongfully “created the dangerous condition” or (b) that “[the] public entity had actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” ’ [Citation.]” (Tansavatdi v. City of Rancho Palos Verdes (2023) 14 Cal.5th 639, 653.) “A ‘ “[d]angerous condition” means a condition of property that creates a substantial . . . risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ [Citation.] The plaintiff is required to establish only ‘that the condition . . . creates substantial risk of harm when used with due care by the public generally . . . .’ [Citation.]” (County of San Diego v. Superior Court (2015) 242 Cal.App.4th 460, 467.) Trivial Defect “It is well-settled that landowners are ‘not liable for damages caused by a minor, trivial or insignificant defect in property.’ [Citation.] In the context of sidewalk defect cases, landowners ‘do[] not have a duty to protect pedestrians from every sidewalk defect that might pose a tripping hazard—only those defect that create a substantial risk of injury to a pedestrian using reasonable care.’ [Citations.]” (Miller v. Pacific Gas and Electric Company (2023) 97 Cal.App.5th 1161, 1166 (“Miller”).) The trivial defect doctrine is not an

		affirmative defense but an aspect of duty that a plaintiff must plead and prove, and it applies where liability is alleged against both governmental entities and private landowners. (Ibid.) Government Code section 830.2 states: “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Gov. Code, § 830.2.) To establish a dangerous condition, a plaintiff must allege and prove at least one physical characteristic of the property that is defective and foreseeably endangers users of the property. (Bonanno v. Central Contra Costa Transit Authority (2003) 30 Cal.4th 139, 148-151.) A condition is “not dangerous” if “the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property . . . was used with due care . . .’ in a reasonably foreseeable manner. [Citation.]” (Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1103-1104 (“Huckey”).) The trial court may determine whether a given walkway defect was trivial as a matter of law in appropriate cases. (Huckey, supra, 37 Cal.App.5th at p. 1104.) Where reasonable minds can reach only one conclusion, that there was no substantial risk of injury, the issue is question of law. (Ibid.) “If, however, the court determines that sufficient

evidence has been presented so that reasonable minds may differ as to whether the defect presents a substantial risk of injury, the court may not conclude that the defect is trivial as a matter of law. [Citation.]" (Id. at pp. 1104-1105.)

"The court's analysis of whether a walkway defect is trivial involves as a matter of law two essential steps. 'First, the court

reviews the evidence regarding type and size of defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law . . . .' [Citation.]" (Huckey, supra, 37 Cal.App.5th at p. 1105.)

"California does not classify defects as trivial or substantial according to a tape measure test—the mere depth or height of the defect in comparison to the rest of the sidewalk. Instead, courts look to the totality of the circumstances which include: (1) the physical characteristics of the defect (i.e., size, jagged edges, broken pieces, exposed rebar), (2) the setting (lighting, weather, other factors affecting visibility), and (3) history (plaintiff's familiarity with the area, any previous injuries attributable to the defect) . . . " (Lechler v. City of San Francisco (1998) 65 Cal.App.4th 523.)

"Whether a particular sidewalk defect is trivial and nonactionable may be resolved as a matter of law using a two-step analysis. [Citation.]" (Miller, supra, 97 Cal.App.5th at p. 1167.) "First, we review the evidence of the size and nature of the defect." (Ibid.) "If that analysis supports a finding of a trivial defect based on its physical characteristics, we then consider whether the defect was likely to pose a significant risk of injury because there was evidence that the conditions of the

		walkway surrounding the defect or the circumstances of the accident ‘ma[de] the defect more dangerous than its size alone would suggest.’ ” (Ibid.) “If the evidence of additional factors does not indicate the defect was sufficiently dangerous to a reasonably careful person, we deem the defect trivial as matter of law.” (Ibid.) The Court of Appeal in Miller (First District, Division 3) noted that one Court of Appeal in Stack v. City of Lemoore (2023) 91 Cal.App.5th 102 (Fifth District) “recently rejected this two-step analysis and used ‘a holistic multi-factor framework for assessing triviality’ as a matter of law, holding that ‘the size of the defect is but one of the many circumstances to be considered; however, size remains the ‘most important’ of the dangerous condition factors.’” (Miller, supra 97 Cal.App.5th at p. 1167.) The Fifth District in Stack v. City of Lemoore (2023) 91 Cal.App.5th 102 acknowledged that Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1107 held that “[s]idewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law” and that Stathoulis v. City of Montebello (2008) 164 Cal.App.4th 559, 567 noted that “[s]everal decisions have found height differentials of up to one and one-half inches trivial as a matter of law.” (Stack v. City of Lemoore (2023) 91 Cal.App.5th 102, 113.) The court in City of Lemoore stated, however, that “[t]his dictum in Huckey and Stathoulis exaggerates the generally accepted size range of defects deemed trivial” and “[t]he more accurate encapsulation is that ‘when the size of the depression begins to stretch beyond one inch the courts have been reluctant to find that the defect is not dangerous as a matter of law,’ i.e., that it is minor or trivial.” (Ibid.) In the “holistic multifactor framework, the size of the defect is but one of the many circumstances to be considered; however, size remains the “most important” ’ of the dangerous condition factors. [Citations.]” (Id. at p. 114 [finding that the

		minimum one and three-quarter-inch height differential of the defect weighed heavily against finding the sidewalk condition trivial as a matter of law as the height was "nearly double the one-inch threshold where courts grow reluctant to take the issue from the jury," and that "the height of this defect will require a strong showing of other circumstances that made it not dangerous despite its height"].) "Beyond size, additional factors courts typically consider in assessing a sidewalk condition's triviality as a matter of law are: the nature and quality of the defect (including whether it has jagged breaks or cracks); whether anything was obstructing or concealing the defect (for instance, an object, debris, or other substance); the lighting and weather conditions at the time of the incident; whether the defect has caused other accidents; and plaintiff's familiarity with the area." (Id., at p. 115.) Here, the Complaint asserts a claim for dangerous condition of public property against Tustin. It is alleged that Plaintiff was walking on the sidewalk in front of 16661 McFadden Avenue, Tustin, California 92780 ("Premises") when she tripped on a piece of cracked and raised sidewalk and fell to the ground. (Complaint, at p. 5, Prem. L-1.) It is alleged that "Plaintiff contends that the cracked and raised sidewalk at the Premises constituted a dangerous condition for lack of maintenance, repair, inspection, training, warning and/or supervision that injured Plaintiff." (Ibid.) It is undisputed that the uplift in the Subject Sidewalk was raised at a range between 0.81 inches to 1.15 inches. (Plaintiff's Separate Statement ("PSS"), 7.) Plaintiff asserts no valid objection to the declaration of Tustin's reconstruction expert, Elvis Desai, MSME, ACTAR, who reached this measurement to a reasonable degree of scientific probability based on his review and consideration of the evidence including photos of the Subject Sidewalk and the deposition transcript of Elisa Jill O'Mary, scientific literature, published test data, and the expert's education, training,

background, and experience. (Ex. 5 to Tustin's Compendium of Evidence ("Tustin's COE"), Declaration of Elvis Desai, MSME, ACTAR, ¶¶ 2-13, Exs. 1-6.) Plaintiff asserts that the measurement is disputed, but provides no evidence creating a triable issue of material fact as to the size of the uplift. (PSS, 7.)

While the height of the uplift in the Subject Sidewalk, itself, may be trivial, it is not simply the uplift that is at issue, but the crack, and its size and irregularity, in the Subject Sidewalk.

The photographs of the alleged defect in the Subject Sidewalk demonstrate that the crack is large, extending the entire width of the sidewalk, and is irregularly shaped. Tustin does not address these other physical characteristics of the alleged defect, namely, the size or shape of the crack. (See Ex. 5 to Tustin's COE, Exs. 2-3 to Desai Decl.") Where a moving parties' separate statement does not address a material fact in the complaint, it does not assert a prima facie case of entitlement to summary judgment and does not shift the burden to plaintiff to file an opposing separate statement. (Teselle v. McLoughlin (2009) 173 Cal.App.4th 159, 160.) "A summary judgment may not be granted when the moving party has failed to 'refute [a] tenable pleaded theor[y].' [Citation.]" (Id. at pp. 161-162.) By failing to address the allegation that the Subject Sidewalk was cracked, Tustin fails to meet its initial burden.

" '[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.' [Citation.] '[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make

		a prima facie showing of the existence of a triable issue of material fact.' [Citation.]" (Nicoletti v. Kest (2023) 97 Cal.App.5th 140, 143–144.) The court is prohibited from granting summary judgment when the moving party has not met its initial burden of proof. (Thatcher v. Lucky Stores, Inc. (2000) 79 Cal.App.4th 1081, 1085-1086 [finding that unless the moving party has met its initial burden of proof, the court does not have discretion under subdivision (b) of section 437c to grant summary judgment based on the opposing party's failure to file a proper separate statement].) Additionally, whether or not the Court considers the opinions of Plaintiff's expert, the photographs of the alleged defect themselves create a triable issue of material fact as to whether the defect was trivial. "[R]egardless of whether a witness can be found to opine on the subject of a dangerous condition, the court must independently evaluate the circumstances." (Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 928 [finding that "expert testimony and photographs regarding the size and shape of the crack do not create a triable issue whether there was a substantial risk of injury"].) In determining a motion for summary judgment, the court is "required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion; doubts as to whether there are any triable issues must be resolved in favor of the opposing party; and equally conflicting evidence or inferences require denial of a summary judgment motion." (Essex Ins. Co. v. Heck (2010) 186 Cal.App.4th 1513, 1522.) Applying a holistic multi-factor framework, the nature and qualify of the defect renders the uplift more dangerous. The crack is large spanning the entire width of the Subject Sidewalk and is irregularly shaped. " 'Where the evidence presented by defendant does not support judgment in his favor, the motion must be denied without looking at the opposing evidence, if

		any, submitted by plaintiff.' [Citations.]" (Hawkins v. Wilton (2006) 144 Cal.App.4th 936, 940.) Tustin's Objections to Evidence Tustin objects to portions of the Declaration of Alex Zaretskiy, P.E., CXLT (Plaintiff's expert). The Court SUSTAINS Objection Nos. 1, 2, 3, 5, 6, 7, 8, and 9. The Court OVERRULES Objection No. 4. Plaintiff to give notice.